

HOUSE No. 1252

The Commonwealth of Massachusetts

PRESENTED BY:

Jay D. Livingstone

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to gender identity in insurance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>1/17/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>3/17/2025</i>

HOUSE No. 1252

By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 1252) of Jay D. Livingstone relative to gender identity in insurance. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to gender identity in insurance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 175 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after the definition for "Foreign company", the
3 following definition:-

4 “Gender identity” shall mean a person's gender-related identity, appearance or behavior,
5 whether or not that gender-related identity, appearance or behavior is different from that
6 traditionally associated with the person's physiology or assigned sex at birth. Gender-related
7 identity may be shown by providing evidence including, but not limited to, medical history, care
8 or treatment of the gender-related identity, consistent and uniform assertion of the gender-related
9 identity or any other evidence that the gender-related identity is sincerely held as part of a
10 person's core identity; provided, however, that gender-related identity shall not be asserted for
11 any improper purpose.

12 SECTION 2. Section 4C of chapter 175 of the General Laws, as so appearing, is hereby
13 amended by inserting after the word “sex”, in line ____, the following words:- , gender identity.

14 SECTION 3. Section 24A of chapter 175 of the General Laws, as so appearing, is hereby
15 amended by inserting after the word “sex ”, in line ____, the following words:- or gender identity.

16 SECTION 4. Section 120F of chapter 175 of the General Laws, as so appearing, is hereby
17 amended by inserting after the word “sex”, in line ____, the following words:- , gender identity.

18 SECTION 5. Section 122 of chapter 175 of the General Laws, as so appearing, is hereby
19 amended by inserting after the word “sex”, in line ____, the following words:- , gender identity,
20 and after the word “sex” in line ____, the following words:- , or gender identity.

21 SECTION 6. This act shall take effect on January 1, 2026.